Chapter 20.120 ZONING CHANGES AND AMENDMENTS

Part 1 GENERAL

20.120.010 Ordinances initiated by council.

A. The city council, on its own motion, may initiate, prepare, and adopt ordinances zoning or rezoning any property, or otherwise amending, supplementing, adding to, repealing, or changing any of the regulations or provisions of this title.

B. The council shall refer the ordinance to the planning commission for its report or recommendations. The planning commission shall hold a public hearing pursuant to Section 20.120.040.

C. Upon receipt of the report or recommendations from the planning commission, the council shall hold a public hearing pursuant to Section 20.120.050.

(Ord. 26248.)

20.120.020 Ordinances initiated by property owners.

A. Owners of land, acting in person or through authorized agents, may petition for the zoning or rezoning of:

1. Their land; or

2. Their land plus land owned by others, if the petition is signed by owners, or authorized agents of owners, of

    a. Not less than fifty percent of the total area of all the land proposed to be zoned or rezoned; or

    b. Property constituting not less than fifty percent of the total frontage of all the land proposed to be zoned or rezoned.

B. All land subject to the petition shall be contiguous. Land subject to the petition may be separated by a public street.

C. All petitions shall be filed with the director in a form prescribed by the director and shall be accompanied by the fees set forth in the schedule of fees adopted by resolution of the city council.

D. Upon finding the petition complete, the director shall review the petition and shall set a public hearing before the planning commission on the petition. The planning commission shall hold a public hearing pursuant to Section 20.120.040.

E. Upon receipt of the report or recommendations from the planning commission, the council shall hold a public hearing pursuant to Section 20.120.050.

(Ord. 26248.)

20.120.030 Ordinances initiated by the director.

A. The director may initiate and prepare ordinances zoning or rezoning property, amending, supplementing, adding to, repealing, or changing any of the regulations or provisions of this title.

B. The director shall refer the ordinance to the planning commission for its report or recommendations. The planning commission shall hold a public hearing pursuant to Section 20.120.040.

C. Upon receipt of the report or recommendations from the planning commission, the council shall hold a public hearing pursuant to Section 20.120.050.

D. During the proceedings to adopt an ordinance zoning or rezoning property, amending, supplementing, adding to, repealing, or changing any of the regulations or provisions of this chapter, the council may make such changes, deletion, additions, or modifications to such ordinance as the council may deem appropriate. The council may adopt any changes, deletions, additions, or modifications thereto as the council deems appropriate.

E. For purposes of this section the executive director of the San José redevelopment agency may initiate ordinances zoning or rezoning property within any redevelopment area. Once the executive director has initiated the zoning or rezoning, it shall be processed by the director of planning, building and code enforcement pursuant to Subsections B through D of this section.

(Ord. 26248.)

20.120.040 Hearing - Planning commission.

A. Whenever the planning commission is required to hold a public hearing, notice of the public hearing shall be given pursuant to Section 20.120.060.

B. If the planning commission fails to hold or complete a public hearing within sixty days after the date noticed for the public hearing, the council may deem said failure to constitute a recommendation by the commission that the proposed ordinance be not adopted, and may then proceed to adopt the ordinance notwithstanding the failure of the commission to hold or complete the public hearing or submit its report or recommendations to the council.

C. Upon completion of the public hearing, the planning commission shall submit its report or recommendations to the council.

(Ord. 26248.)

20.120.050 Hearing - City council.

A. Whenever the council is required to hold a public hearing, notice of the public hearing shall be given pursuant to Section 20.120.060.

B. During the proceedings to adopt an ordinance amending, supplementing, adding to, repealing, or changing any of the regulations or provisions of this chapter, the council may make such changes, deletion, additions, or modifications to such ordinance as the council may deem appropriate. The council may adopt the ordinance, including any changes, deletions, additions, or modifications the council deems appropriate.

C. Failure of the council to deny or to adopt an ordinance zoning or rezoning property, within sixty days from and after the close of its public hearing, shall be deemed to be a denial of the proposed ordinance zoning or rezoning property.

(Ord. 26248.)

20.120.060 Notice.

Whenever the planning commission or the city council is required by the provisions of this chapter to hold any public hearing on any proposed ordinance, notice of the time, place, and purpose of such hearing shall be published at least once in a newspaper of general circulation published in the city, no later than ten days immediately preceding the date of the hearing. The city clerk shall cause such notices to be published.

(Ord. 26248.)

20.120.070 Withdrawal of petition; inactive petition.

A. When notice of a public hearing has been given pursuant to Section 20.120.060, no petition which has been filed pursuant to Section 20.120.020 requesting the zoning or rezoning of any property may be withdrawn except with the consent of the decision maker at the public hearing.

B. If any petition for zoning or rezoning filed pursuant to Section 20.120.020 experiences a period of inactivity for at least twelve consecutive months, the director may thereafter deem such petition withdrawn without scheduling that petition for a public hearing. The director shall provide a courtesy notice to the property owner(s) who petitioned for the zoning or rezoning at the last known address for the property owner(s) on record with the director of the director's intention to deem the petition withdrawn pursuant to the provisions of this section at least thirty days prior to deeming such petition withdrawn, and the notice shall specify the date that the petition is to be deemed withdrawn.

C. For purposes of this section "inactivity" on a petition means that the director has requested from the property owner(s) or has provided the property owner(s) with notice of additional information, materials and/or fees needed by the director from the property owner(s) to continue to process the zoning or rezoning petition and the property owner(s) has(have) failed to respond to that request or notice.

(Ords. 26248, 28511.)

20.120.080 Denial of petition.

If petition, filed pursuant to Section 20.120.020, is denied by the city council, no new petition requesting the same zoning or rezoning for the same property, or any part thereof, shall be filed within one (1) year from and after the date of such disapproval or denial.

(Ord. 26248.)

Part 2 ORDINANCES CONFORMING TO THE GENERAL PLAN

20.120.100 Ordinances conforming to the general plan.

A. If the Council determines, at the time it initiates the zoning or rezoning of property pursuant to Section 20.120.010, that the proposed zoning or rezoning conforms to the land use/transportation diagram of the General Plan, the Council may, in lieu of the Planning Commission hearing, refer the ordinance to the Director for a report or recommendation. No public hearing will be required. The report or recommendation shall be submitted to the Council no later than thirty (30) days from the date the ordinance was referred by the Council.

B. If the Director determines that a petition for zoning or rezoning, filed pursuant to Section 20.120.020, conforms to the land use/transportation diagram of the General Plan, the Director may, in lieu of the Planning Commission hearing, prepare a report or recommendation for the City Council. No public hearing will be required. Nothing shall prevent the Council from referring such petition to the Planning Commission for its report and recommendation when it receives the report or recommendation from the Director.

C. If the Director determines, at the time the Director initiates the zoning or rezoning of property pursuant to Section 20.120.030, that the proposed zoning or rezoning conforms to the land use/transportation diagram of the General Plan, the Director may, in lieu of the Planning Commission hearing, prepare a report or recommendation for the City Council. No public hearing will be required. Nothing shall prevent the Council

from referring such petition to the Planning Commission for its report and recommendation when it receives the report or recommendation from the Director.

D. Notwithstanding Subsections 20.120.100.A., B., and C. above, this Section is not applicable to Parcels that are developed with Mobilehome Parks.

(Ords. 26248, 27717, 29945.)

20.120.110 Conformance with the general plan.

A. For the purposes of Section 20.120.100 only, the determination of conformance of zoning or rezonings to the General Plan, shall be made in the manner set forth in Table 20-270:

Table 20-270

General Plan Designation	Conforming District
All designations	OS, A
Open Hillside	OS
Lower Hillside (1 du/5 ac)	R-1-RR
Rural Residential (2 du/ac)	R-1-1, R-1-2
Residential Neighborhood	R-1-8, R-1-5
Urban Residential	UR
Transit Residential	TR
Mixed Use Neighborhood	MUN
Mixed Use Commercial	MUC
Neighborhood/Community Commercial	CP, CN, CG
Regional Commercial	CG
Public/Quasi-Public	PQP
Industrial Park	IP
Transit Employment Center	TEC
Light Industrial	LI
Heavy Industrial	HI
Combined Industrial/Commercial	CIC
Downtown	DC
Transportation and Utilities	PQP
Open Space, Parklands, and Habitat	OS
Urban Village	UV
Urban Village Commercial	UVC

B. A Planned Development (PD) Combining District conforms to the General Plan designation where the uses permitted by the general development plan for such proposed district conform to General Plan designation and where the base zone thereof conforms to said designation in accordance with the foregoing table.

C. Each portion of the property to be zoned or rezoned must conform to the General Plan designation for each such portion.

D. Notwithstanding Subsections 20.120.110 A., B., and C. above, this Section is not applicable to Parcels that are developed with Mobilehome Parks.

(Ords. 26248, 28460, 29012, 29218, 29364, 29945, 30290, 30603.)

Part 3 URGENCY ORDINANCES

20.120.200 Urgency ordinance.

When the council finds, determines, and declares that an ordinance is an urgency measure for the immediate preservation of the public peace, health, or safety, it may adopt such ordinance, effective immediately, without first referring the ordinance to the planning commission for its report or recommendation, and without itself first holding a public hearing.

(Ord. 26248.)

20.120.210 Reconsideration of urgency ordinances.

Upon adoption of any ordinance as an urgency measure, whether such ordinance zones or rezones any property or amends, supplements, adds to, repeals or otherwise changes any of the regulations or provisions of this chapter, the city council shall initiate proceedings pursuant to Section 20.120.010 to consider:

1. Repeal of the urgency ordinance; or
2. Readoption of the provisions of the ordinance, except the urgency provision, with such amendments, additions or changes, if any, as appropriate.

(Ord. 26248.)

Part 4 PREZONING AND ANNEXATION

20.120.300 Prezoning of adjoining unincorporated territory.

A. As used in this section, "prezoning ordinance" means an ordinance which zones or rezones unincorporated territory adjoining the city into one or more city zoning districts. "Prezoned territory" means unincorporated territory adjoining the city which is zoned or rezoned into one or more city zoning districts by a prezoning ordinance.

B. The city zoning provided in a prezoning ordinance shall not become effective unless and until the prezoned territory covered by such prezoning ordinance becomes annexed to the city. At any time before prezoned territory becomes annexed to the city:

1. the city zoning thereof may be changed by a subsequent prezoning ordinance; or
2. all city zoning may be removed therefrom by a subsequent ordinance.

C. Proceedings for the adoption of a prezoning ordinance shall be subject to the procedures set forth in Part 1 of this Chapter 20.120.

D. Unless it shall have been otherwise zoned pursuant to Section 20.120.320 during pendency of the proceedings annexing it to the city, when prezoned territory or territory covered by a prezoning ordinance becomes annexed to the city, it shall, immediately upon its annexation to the city, or upon the effective date of the prezoning ordinance, whichever occurs last, without further action or proceedings, be deemed to be zoned in the city as provided in the prezoning ordinance covering such territory, and the zoning district map of the city shall, without further action or proceedings, be amended to show that such territory is zoned in the city as provided in such prezoning ordinance. After prezoned territory becomes annexed to the city, the

zoning thereof shall be subject to change, and may be changed, to the same extent and in the same manner as the zoning of all property in the city is subject to change and may be changed.

(Ord. 26248.)

20.120.310 Zoning of agricultural property annexed to city.

Unless the property shall have been otherwise zoned pursuant to the provisions of Sections 20.120.300 and 20.120.320, all unincorporated territory which, at the time of its annexation to the city, is zoned by the County of Santa Clara, under and pursuant to Title 12 of said county's ordinance code, as amended, as an "A-Exclusive Agricultural Zoning District" or an "A-1 Residential and Agricultural Zoning District" shall, immediately upon its annexation to the city, without further action or proceedings, be deemed to be and the same shall be zoned in the city as an A agricultural district, and the zoning district map of the city shall, without further action or proceedings, be amended to show that such territory is zoned in the city as an A agricultural district.

(Ord. 26248.)

20.120.320 Emergency zoning of annexed territory.

At any time during pendency of proceedings to annex territory to the city, the city council may, whenever it finds that it is necessary to do so for the immediate preservation of the public peace, health, and safety, adopt as an urgency ordinance, effective immediately upon adoption, an ordinance which without further action or proceedings, zones such territory immediately upon its annexation to the city.

(Ord. 26248.)

Part 5 ZONING PROTESTS

20.120.400 Zoning protests - Filing.

A. The owner of any property within the protest line as defined in Section 20.120.410 or within the subject territory may file a formal protest against a proposed zoning, except when adoption is by urgency ordinance.

B. Such protest must be filed in writing with the director no later than 5:00 p.m. on the fifth (5th) day before the date of the opening of the council's hearing on a proposed zoning ordinance.

C. Each such protest shall set forth the following:

1. The name and address of the protestant.
2. The street address of the lot owned by the protestant or such other information as will enable the director to determine the boundaries and location of such lot.
3. A statement of protestant's interest in such lot together with such evidence thereof as the protestant may wish to submit.
4. The zoning of such lot owned by protestant.
5. The protestant's reasons for protesting the proposed zoning of the subject property.

D. Minor errors or omissions in the information set forth in such a protest petition may be waived by the city council. However, no such protest petition shall be deemed filed unless the following conditions are met:

1. It is signed by one or more owners of an undivided interest of at least fifty-one percent (51%) in the lot or parcel for which such protest is filed, such interest being not merely an easement. A tenant under a

lease which has a remaining term of ten years or longer shall be deemed an "owner" for purposes of this section.

2. All signatures thereto are acknowledged.

3. Where the owner of an eligible protest site is a legal entity other than a person or persons, the protest petition is signed by the duly authorized officer of such legal entity.

4. Where such legal entity is a homeowners association, the protest petition is signed by the duly authorized officer of such association, or, in lieu thereof, by fifty-one percent (51%) of the members of such association.

(Ord. 26248.)

20.120.410 Majority protest determination.

A. A majority protest occurs when the director determines that written protests have been filed by the owners of sites bounded by fifty (50) percent or more of the total length of the protest line, or by the owners of not less than fifty (50) percent or more of the area of the subject property.

B. Upon the filing of such a petition the director shall investigate the same and determine:

1. The boundaries and location of the parcel for which such protest petition is filed and whether it is an eligible protest site;

2. The full amount of protest line bounding such lot or parcel; and

3. Whether the protestant's interest in such lot or parcel qualifies for the filing of a protest.

C. In making such investigation and determination, the director shall not be limited to the information contained in the petition. The director may request the protestant to furnish additional necessary information and may otherwise obtain such information. If the director desires additional information from the protestant, the protestant shall be so notified and given a reasonable time after such notice to furnish whatever additional information the director deems necessary to make said determinations. If the protestant does not furnish such additional information within the time prescribed or if despite the furnishing of such additional information plus whatever other information the director may have obtained, the director is still at the close of the council's hearing unable to make said determinations, such petition shall be void and shall not be considered.

D. As used in this part, the following terms shall have the following meanings:

1. "Protest line" means and includes the sum of the perimeter lines, adjoining frontage lines, and opposite frontage lines bounding all the eligible protest sites, provided that no part of any boundary line of any eligible protest site shall be counted more than once in computing the total length of the protest line.

2. "Subject property" is the land proposed to be zoned, excluding any portion thereof situate in a street.

3. For purposes of this part, "parcel" means a lot or parcel of land undivided by any street and excluding therefrom any portion thereof situate in a street.

4. An "eligible protest site" is a parcel which is an abutting site, an adjoining frontage site, or an opposite frontage site.

5. A "protesting site" is an eligible protest site for which a protest petition has been filed under and in accordance with the requirements of this section.

6. "Street" means a public street. A "common street" is a street on which the subject property, and another parcel, each have a frontage.
7. A "common street frontage line" is the frontage line which the subject property and another parcel have on the same side of a common street.
8. A "perimeter line" is a common boundary line between the subject property and an abutting site.
9. An "abutting site" is a parcel which abuts the subject property.
10. An "adjoining frontage site" is an abutting site with a common street frontage line which is one on the same side of the common street as that of the subject property, such common street frontage line, at its terminus closest to that of the subject property, being not separated from that of the subject property by any intervening parcel.
11. An "adjoining frontage line" is the uninterrupted common street frontage line of an adjoining frontage site, but in no event more than one hundred feet (100) thereof, beginning at the terminus thereof closest to the common street frontage line of the subject property.
12. An "opposite frontage site" is a parcel which is situate on the opposite side, from the subject property, of a common street which is not designated as an existing or proposed freeway or expressway in the latest adopted general plan of the City of San José, provided that the common street frontage line of such parcel is situate wholly or partly within lines extending across the common street and drawn from the terminus of the common street frontage line of the subject property and at right angles to such frontage line of the subject property, or at right angles to a tangent thereto if such frontage line is an arc. Such lines extending across the common street shall be referred to herein as "lateral lines."
13. An "opposite frontage line" is all of the common street frontage line of an opposite frontage site situate within the lateral lines plus so much of the uninterrupted continuation thereof beyond an intersecting lateral line, up to a maximum of one hundred feet beyond such lateral line as is situate outside of the lateral lines.

(Ord. 26248.)

20.120.420 Effect of majority protest.

If the director determines that a majority protest has been filed:

A. In order to consider a motion to adopt the proposed ordinance, the city council must first override the majority protest by an affirmative vote of at least two-thirds (2/3) of its members. Such override must occur within sixty (60) days from the close of the public hearing on said ordinance;

B. The city council may deny the proposed ordinance without first approving or overriding the majority protest; or

C. If the city council fails to override the majority protest and also fails to deny the proposed ordinance within sixty (60) days from the close of the public hearing on the proposed ordinance, said ordinance shall be deemed denied by the city council on the sixty-first (61st) day.

(Ord. 26248.)

Part 6 PLANNED DEVELOPMENT DISTRICTS

20.120.500 Planned development district.

A. Proceedings to zone certain territory to a planned development district may be initiated by the city council or by petition joined in by all of the owners of the territory covered by the petition.

B. The provisions of this Chapter 20.120 shall apply to the initiation, adoption and amendment of any planned development district. To the extent any provision of this part conflicts with any other provision of this Chapter 20.120, the provisions of this part shall apply.

(Ord. 26248.)

20.120.510 General development plan requirements.

A. The planned development district shall be individually designed to meet the needs of the territory so zoned. The uses and requirements of the planned development district shall be reflected in the general development plan which is adopted as part of the planned development zoning ordinance. The general development plan shall include, when applicable:

1. All public and private use areas appropriately mapped, clearly identified, and shaded, including:

    a. All permitted land uses, including unit type (single-family detached, single-family attached, multiple-family, etc.) and size for residential uses.

    b. Landscape areas, common open space, private open space, and public open space.

    c. All public streets, private streets and driveways within the proposed PD zone, labeled "public street," "private street," or "driveway" with total right-of-way width dimensioned.

    d. All public and private streets adjacent to the proposed planned development zone, labeled "public" or "private" and showing dimension from street centerline to ultimate right-of-way edge.

    e. All public and private easements, including parking, access, utility, and pedestrian easements showing purpose and beneficiary of each easement.

2. Zoning regulations which include and specify:

    a. Permitted, conditional, and special use allowances.

    b. Development standards, including:

        i. All setbacks,

        ii. Building heights (stories and feet),

        iii. Parking (number of spaces and ratios),

        iv. Minimum lot size and dimensions, if applicable.

    c. Where landscaping is to serve a particular function, such as a screen or buffer, the particular function and landscape concept shall be identified. Where landscaping is proposed in the public right-of-way, the maintenance responsibility shall be specified.

    d. Clear descriptions of any required off-site work, including street and infrastructure improvements.

e. Noise attenuation requirements, if any.

f. Environmental mitigation as required by the environmental clearance.

g. Any other appropriate conditions of approval.

3. Additional graphic (i.e. mapped) information as applicable, including:

a. The location of the closest buildings, both existing and approved, on adjacent properties.

b. All existing structures which are to be retained.

c. All significant existing natural features, including:

d. "Ordinance size" trees (18" diameter or larger) and any smaller trees which are significant by virtue of their species, location and/or significance to the site due to the limited amount of existing vegetation.

e. Creeks and waterways.

f. Rock outcroppings.

g. The location and required height of sound walls.

h. Topography shown, sufficient to describe terrain, including top of bank, where site is adjacent to creek or has an existing overall slope of more than two percent.

i. Proposed grading if any cut or fill slope exceeds eighteen (18) inches.

4. Building elevations which illustrate the intended architectural style and character and the size, shape, materials and general detailing of buildings.

B. The director and the planning commission may recommend and/or the city council may adopt conditions of approval that include alternative means of compliance for a specific project impact where each alternative adequately addresses the same specific project impact.

C. Nothing herein shall preclude the director, the planning commission or the city council from requiring any additional information to be shown on the general development plan.

D. Any change to an adopted general development plan shall require the filing and consideration of a petition in accordance with the provisions of this Chapter 20.120.

(Ords. 26248, 28677.)

20.120.520 Planning commission recommendations.

After a public hearing, the planning commission may:

1. Recommend that the subject territory be zoned to the planned development district as proposed.

2. Recommend that the subject territory not be zoned to the planned development district as proposed.

3. Recommend such changes to the proposed zoning as it deems appropriate. Without limiting the generality of the proceeding sentence, the commission may recommend that the city council:

a. Zone all or only part of the subject territory to the planned development district;

b. Provide a base district zoning which differs substantially from the proposed base district zoning;

c. Include a general development plan which differs substantially from the proposed general development plan.

(Ord. 26248.)

20.120.530 Council action.

After a public hearing the city council may:

1. Approve the proposed zoning to the planned development district.
2. Deny the proposed zoning to the planned development district.
3. Adopt an ordinance changing the proposed zoning in whatever way it deems appropriate regardless of how substantially this may differ from the proposed zoning. Without limiting the generality of the preceding sentence, the ordinance may:
   a. Zone all or only part of the subject territory to the planned development district;
   b. Provide a base district zoning which differs substantially from the proposed base district zoning;
   c. Include a general development plan which differs substantially from the proposed general development plan.

(Ord. 26248.)